



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

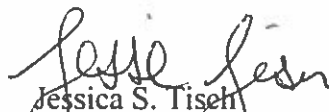
Re: PODS Case No. C-033212 regarding Police Officer George Hanna

Date: December 15, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Police Officer Hanna issued an unlawful summons to an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Hanna will be issued a Schedule "B" Command Discipline with the forfeiture of seven (7) vacation days, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 3, 2025

Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer George Hanna (Tax Reg #967915, CCRB # 202308743)

Commissioner Tisch:

On August 7, 2025, a negotiated settlement was agreed upon and signed by the parties in the above-captioned case. Under that agreement, Police Officer George Hanna accepted the findings underlying the Charges and Specifications, and the CCRB recommended that the charges be dismissed and that Officer Hanna receive a Command Discipline Schedule "B" and forfeit seven (7) vacation days. During a conference that took place on August 21, 2025, Assistant Deputy Commissioner - Trials Anne E. Stone endorsed the negotiated settlement.

Facts

On September 15, 2023, at approximately 10:30 pm, Police Officer George Hanna and other members of service from the PSA 1 Command in Brooklyn stopped a minivan for parking in a bike lane and failing to signal. [REDACTED] had been driving the car, and his brother, [REDACTED] was the only passenger. The men were asked to exit the car after Detective (then Police Officer) Oliver Vidal saw what he believed was a bottle of beer in the back seat of the car. Sergeant Michael Wallace then directed Detective Vidal to search the car for open containers of alcohol.

During the search, Officer Hanna stood nearby and spoke to [REDACTED]. As Detective Vidal walked around the car and shone his flashlight inside, [REDACTED] repeatedly stated aloud that there were no open bottles of alcohol inside the car. Detective Vidal later reported to Sergeant Wallace that he did not observe any additional bottles. No field sobriety tests were conducted during the investigation. Body worn camera footage shows that neither [REDACTED] nor [REDACTED] exhibited any signs of intoxication, such as slurred speech, and no officer commented on an odor of alcohol.

Following the search, the civilians were permitted to re-enter the car. Sergeant Wallace then instructed Officer Hanna to "just write him a summons for whatever." As Officer Hanna turned to walk away, Sergeant Wallace continued to say, "he pulled out." Officer Hanna proceeded to write [REDACTED] a summons for an open container violation even though no open bottle of alcohol was found in the car. Officer Hanna later reported to the CCRB that he wrote a summons for an open container violation because he did not personally observe any other violation. Another officer who had been on the scene voided the unlawful summons the following day.



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Officer Hanna abused his authority and violated the Administrative Guide when he issued a summons to [REDACTED] for an offense that was never committed. To be sure, Sergeant Wallace poorly communicated the instruction regarding the summons; however, Officer Hanna issued a summons that did not comport with the results of the police investigation instead of seeking necessary clarification. Indeed, Officer Hanna was standing merely a few feet away when Detective Vidal searched the car and found no open alcohol. Moreover, [REDACTED] repeatedly denied that he had open alcohol in the car, and the officers plainly did not suspect that he was intoxicated because no field sobriety tests were performed. Although Sergeant Wallace remained on the scene and could have assisted in writing the summons or confirmed the justification for the summons, Officer Hanna overlooked multiple opportunities to consult with his supervisor.

NYPD Disciplinary Guidelines and CCRB Recommendation

Officer Hanna was served with Charges and Specifications for abusing his discretion or authority during an enforcement action, to wit, issuing an unlawful summons. NYPD disciplinary guidelines indicate that the mitigated penalty for that misconduct is the forfeiture of ten (10) vacation days, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

The negotiated settlement recommending the forfeiture of seven (7) vacation days deviates from NYPD Disciplinary Guidelines for the following reasons:

Officer Hanna has been a member of service for over six (6) years and has a positive employment history, including the receipt of departmental medals for excellent and meritorious duty. He has no formal disciplinary history, meaning the NYPD has not taken any disciplinary action against him. Finally, with respect to the misconduct, the CCRB's investigation revealed that Officer Hanna's conduct was the product of carelessness as opposed to bad faith. For these reasons, the CCRB deems it appropriate to deviate from the NYPD Disciplinary Guidelines and recommend a Command Discipline, Schedule "B" and the forfeiture of seven (7) vacation days.

Respectfully submitted,

Rebecca Hausner

Rebecca Hausner, Esq.
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Civilian Complaint Review Board